

SANCHEZ, et al v SIMPSON, JR, et al

22CV46351

PLAINTIFF'S MOTION TO STRIKE OR TAX COSTS

This matter involves a real property dispute between Antone Sanchez, Carol Sanchez, and Linda Andrus ("Plaintiffs") and Russel Simpson, Jr., Stacy Simpson, and Placer Title Company, Inc. ("Defendants.") The matter went to arbitration on February 20, 2026, and the arbitrator decided in favor of Defendants. The Court entered judgment in accordance with the arbitration award on March 23, 2026.

Now before the Court is Plaintiffs' motion to strike or tax costs. Plaintiffs seek the following reductions:

- One filing fee in the amount of \$435.00 instead of \$930.00
- Reduction of deposition and travel costs from \$8,892.60 to a maximum of \$1,000.00
- \$49.78 in electronic filing fees

The motion is opposed.

I. Legal Standard

Code of Civil Procedure section 1032(b) provides that a prevailing party is entitled to recover costs as a matter of right. Section 1033.5 itemizes costs that are recoverable and subsection (c) specifies that costs must be reasonably necessary to the conduct of litigation, rather than merely convenient or beneficial to its preparation, and the costs must be reasonable in amount.

"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (*Ladas v. California State Auto Assn.* (1993) 19 Cal.App.4th 761, 774.)

II. Discussion

Defendants initially oppose the Plaintiffs' motion on the grounds that it is not timely. California Rule of Court section 3.1700(b)(1) requires that a motion to tax costs be filed within 15 days of service of the cost bill. Defendants filed their memorandum of costs on March 18, 2026, and served the statement on Plaintiffs' counsel via regular U.S. mail.

Pursuant to Code Civil Procedure section 1013, Plaintiffs had an additional five days to file their motion. The motion was filed on April 7, 2026, and is therefore timely.

A. Filing Fees

Plaintiffs first take issue with the fact that Defendants claim \$435.00 as an initial filing fee for Russell Simpson and \$435.00 as an initial filing fee for Stacy Simpson, totaling \$870.00 in initial filing fees, and an additional \$60.00 filing fee for the (successful) motion to compel arbitration. Plaintiffs argue that because the Simpsons were both represented by the same counsel and filed a joint response to the Complaint, the two filing fees were unnecessary.

Pursuant to Government Code section 70612(a), each defendant must pay the initial filing fee regardless of whether they file an answer jointly or separately. Accordingly, Plaintiffs' argument is meritless.

The motion to tax one filing fee in the amount of \$435.00 is denied.

B. Deposition/Travel Costs

Defendants claim deposition costs totaling \$8,982.60, consisting of \$5,220.40 for the deposition of Russell Simpson and \$3,762.20 for the deposition of Stacy Simpson. The deposition costs for Russell Simpson include taking (reporter) fees of \$2,887.50, transcribing fees of \$1,282.90, and travel costs of \$1,050.00. The deposition costs for Stacy Simpson include taking (reporter) fees of \$1,837.50, transcribing fees of \$874.70, and travel costs of \$1,050.00.

Plaintiffs assert that the taking and transcribing fees are inappropriate because Plaintiffs paid those costs up front. This argument is meritless because costs "are allowable if incurred, whether or not paid." (Code Civ. Proc. §1033.5(c)(1).) Thus, because those costs were incurred – whether paid for by Defendants or not—they are allowable costs under the statute. (*Litt v. Eisenhower Medical Center* (2015) 237 Cal.App.4th 1217, 1222 [citation omitted] ["under the code's cost-shifting provisions, there is 'no requirement that a party claiming costs must have personally incurred the obligations enumerated in the memorandum.' "])

Plaintiffs also assert that the travel fees are excessive because there is no explanation as to why each defendant would have incurred over \$1,000 in traveling costs to their own depositions. In response, Defendants assert that they offered to have the depositions done over video, but that Plaintiffs insisted the depositions take place in person. In response, Plaintiffs argue that they only insisted on in-person depositions because the Defendants had repeatedly postponed or canceled the depositions.

Travel costs are allowable where they are reasonable. Here, Plaintiffs simply argue that the travel costs were unreasonable but do not provide any evidence or proof that those claimed costs are not recoverable. (*Seever v. Copley Press, Inc.* (2006) 141

Cal.App.4th 1550, 1557.) Thus, without more, the Court cannot find that Plaintiffs have adequately placed the burden on Defendants to justify those costs.

Accordingly, the Court denies the motion to tax costs related to depositions and travel.

C. Electronic Filing Fees

Plaintiffs object to \$49.78 in electronic filing fees. Code Civil Procedure section 1033.5(a)(14) allows electronic filing fees to be included as costs if the electronic filing was ordered by the Court. There is no order from the Court requiring the use of electronic filing; therefore, defendants' decision to electronically file was for their own convenience. Accordingly, the motion to tax electronic filing fees is granted.

III. Conclusion

Plaintiffs' motion to strike or tax costs is GRANTED IN PART and (mostly) DENIED. The Court orders the following costs as allowable and owed by Plaintiff: 1) \$930 in filing fees and 2) \$8,982.60 in deposition costs. The Court is cognizant of Plaintiffs' financial status and the burden this order may impose upon them. However, the Court has no authority to consider the Plaintiffs' financial status when considering a motion to tax costs. (*LAOSD Asbestos Cases* (2018) 25 Cal.App.5th 1116, 1124.)

Plaintiffs are to pay Defendants \$9,912.60 in awarded costs within fifteen (15) calendar days of this Ruling.

The clerk shall provide notice of this ruling to the parties forthwith. Defendants to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling.

TAYLOR, et al v RITCHIE

25CV47902

PLAINTIFFS' MOTION TO DEEM REQUESTS ADMITTED

This case involves a property dispute between Plaintiffs Kelly and Matthew Taylor ("Plaintiffs") and Lavina Richie ("Defendant.") Now before the Court is Plaintiff's Motion to Deem Requests for Admissions Admitted.

Defendant has not filed an opposition.

On February 23, 2026, Plaintiffs served, by mail, "Plaintiff Kelley Taylor's Request for Admissions to Defendant Lavina Ritchie, Set One 1" ("RFA") on Defendant. (Declaration of Justin P. Swierczek ("Swierczek Decl.") ¶ 3, Ex. 1.) Defendant never responded nor communicated with Plaintiffs' counsel about the RFAs. (*Id.* ¶¶ 4, 5.)

Pursuant to Code Civ. Proc. section 2033.280, if a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Further, the Court shall deem the facts admitted as truth, unless it finds that the party to whom the RFAs were directed, "has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc. § 2033.280(c).)

A party moving to compel initial responses under this section is not required to meet and confer. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)